



DECISION

Complaint No. : POS/1455/2017/Adv-M

Name and address of the complainant : Mst. Shahida Parveen, B-33/333, J.T.C.H.S. Malir City, Karachi.

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : COMPLAINT ABOUT SIX MONTHS SALARY NOT BEING PAID. TO THE COMPLAINANT.

Complaint:

Mst. Shahida Parveen, Naaib Mualima, of District Municipal Corporation Malir, resident of B-33/333, J.T.C.H.S., Malir City, Karachi, lodged her complaint against Karachi Metropolitan Corporation on 10.5.2017, about six month's salary not being paid to her despite performance of duty, as during this period her appointment was being enquired into as a 'ghost' employee, but which was later cleared. She requested the intervention of this institution.

Proceedings:

2. After admitting the complaint for investigation u/s 10 of the Establishment of Office of the Ombudsman for the Province of Sindh, the complaint was referred to the Senior Director, Human Resources Management, KMC, Karachi for report. The Deputy Director, Human Resources Management, KMC reported vide his letter No. Sr. Dir(HRM)/Dir(LA)/KMC/201/1771 dated 5.7.2017 that since the Education Department has been devolved to the DMC's, his office is unable to provide assistance to the complainant.
3. The Director Education District Municipal Corporation Korangi vide its letter No. DIR/EDU/DMC/K/707/2018, dated 3.1.2018, reported that the complainant had retired on 8.12.2015 from the Education Department KMC, prior to the devolution of this subject to the DMCs in February 2016, and such all such cases have been referred to the Local Government Department for finalizing the payment of retirement dues in respect of such cases.
4. The Director Finance, KMC, vide his letter No. Dir/F&A/KMC/158/2019 dated 11.7.2019 again stated that since the Education Department has been devolved to the DMCs, there is no provision for expenditure on this account in the KMC budget and as such KMC cannot entertain this request.
5. On being referred to the Director Local Fund Audit, Sindh, Karachi, it was intimated by the director that the Education Department was transferred from KMC to DMC's with assets and liabilities, and as such all pending arrears of pay and allowances shall be paid by the DMCs.
6. The Municipal Commissioner, District Municipal Corporation Korangi in his letter dated 25.2.2020 again reiterated his point that the Local Government Department has decided on 8.2.2017 that all dues accrued before 1.2.2016 shall be paid by the KMC. On being referred to the Local Government Department, instead of deciding this issue, forwarded the matter to Metropolitan Commissioner, KMC for report.
7. The Senior Director Finance KMC vide his letter No. Sr. Dir/F&A/KMC/036/2022 dated 3.10.2022 gave a comprehensive report that the Secretary Local Government Department has decided in the meeting that liabilities including salaries of the devolved departments pertaining to the period before January 2016 will be paid by the KMC. But he also emphasized upon Section 4 of the Local Government Act 2013 which states that all assets and liabilities will be transferred to the DMCs. He also mentioned that due to shortage of funds KMC cannot clear the dues of the devolved Departments.

Findings:

8. From the above proceedings it is clear that the KMC and DMC are shifting the burden from each other on the basis of the relevant laws and decisions taken by the Local Government Department. And the Local Government Department to whom the matter was referred for decision, did not accord importance to the matter, and referred it back to the subordinate Institutions. As a result, the complainant has suffered a lot due to this maladministration, although she has been claiming her genuine rights.

Decision:

9. As such, in exercise of powers vested in me u/s 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act 1991, I do hereby direct the Secretary Local Government Department to immediately decide this matter at his personal level and ensure payment of her legitimate dues to the complainant Shahida Parween within six weeks.

“Given under my hand and seal of office”



Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 13th January, 2026

